



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JUNE 16, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	S. B. Member
Hon. Luis Lee E. Espeña, Jr.	S. B. Member
Hon. Alice D. Emano	S. B. Member
Hon. Juan D. Ebid	S. B. Member
Hon. Albert D. Destura	S. B. Member
Hon. Joseph H. Yap, Jr.	S. B. Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member

ABSENT:

Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member
Hon. Rodolfo E. Diolata	Deceased (November 7, 1966 - May 4, 2025)

RESOLUTION NO. 094-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT REGIONAL OFFICE NO. V (DSWD RO V) REPRESENTED BY ITS REGIONAL DIRECTOR, MR. NORMAN S. LAURIO FOR THE IMPLEMENTATION OF THE NATIONAL HOUSEHOLD TARGETING SYSTEM FOR POVERTY REDUCTION (NHTS-PR), ALSO KNOWN AS "LISTAHANAN" IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the DSWD is mandated, among others, to provide assistance to the LGUs, NGOs and other national agencies in effectively implementing programs, projects and services that will alleviate poverty and empower disadvantaged individuals, families and communities for an improved quality of life;

WHEREAS, under Executive No. 867, signed on March 9, 2010, the DSWD has been mandated to be the lead agency in implementing the National Household Targeting System for Poverty Reduction (NHTS-PR), also known sa "*Listahanan*" to establish a system for identifying who and where the poor households are; maintain a system that will serve as a repository of the data on poor households; update the data every 4 years;

and share the data especially to the NGAs which shall serve as basis in the selectin of beneficiaries of social protection programs nationwide;

WHEREAS, the MLGU of Prieto Diaz is mandated to enhance the quality of life of its people by promoting strong multisectoral partnership, socio-economic development and political stability utilizing and protecting the environmental through participatory approach and united political will;

WHEREAS, the MLGU of Prieto Diaz shall act as and have the duties and accountabilities of a personal information controller for all personal data received from the DSWD and shall have in place appropriate physical, technical and organizational measures to protect the personal data received against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, as well as against any other unlawful processing;

WHEREAS, on motion of Hon. Avon Domalaon, duly seconded by Hon. Albert Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with the Department of Social Welfare and Development Regional Office No. V (DSWD RO V) represented by its Regional Director, Mr. Norman S. Laurio, for the implementation of the National Household Targeting System for Poverty Reduction (NHTS-PR), also known as "*Listahanari*" in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor; copy furnished Ms. Betty Arines, MSWDO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

Data Sharing Agreement

between the

MAY 19 2025

Department of Social Welfare and Development (DSWD)

and the

Local Government Unit of Prieto Diaz, Sorsogon

KNOW ALL MEN BY THIS PRESENTS:

This Memorandum of Agreement, hereinafter referred to as MOA or Agreement, made and entered into this ____ day of _____ by and between:

The **DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD)**, a national government agency created and existing under the laws of the Republic of the Philippines with principal office address at **BURAGUIS, LEGAZPI CITY, ALBAY** herein represented by **NORMAN S. LAURIO** in his/her capacity as **Regional Director**, and hereinafter referred to as **First Party**;

and

The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ** with office address **BRGY. PERLAS, PRIETO DIAZ, SORSOGON** herein represented by **ROMEO D. DOMASIAN**, in his/her capacity as **Municipal Mayor**, and hereinafter referred to as **Second Party**;

WHEREAS, the Philippine Constitution declares that the State shall promote a just and dynamic social order that will ensure the prosperity and independence of the nation and free the people from poverty through policies that provide adequate social services, promote full employment, a rising standard of living, and an improved quality of life for all;

WHEREAS, the **First Party** is mandated under the Administrative Code of 1987 to provide a balanced approach to welfare whereby the needs and interests of the population are addressed not only at the outbreak of crisis but more importantly at the stage which would inexorably lead to such crisis, which strategy requires providing an integrated welfare package to its constituents on the basis of their needs and coordinating the service facilities required from such departments or agencies, governmental and non-governmental, which can best provide them;

WHEREAS, in order to fulfill its mandate and objectives, the Administrative Code of 1987 directs the **First Party** to formulate, develop and implement plans and projects in the field of social welfare and development, identify and deliver appropriate interventions, provide consultative and information services to institutions and organizations involved in social welfare activities;

WHEREAS, the **First Party** is mandated to assist other national government agencies (NGAs), local government units (LGUs), non-government organizations (NGOs), people's organizations (POs), and members of civil society in the implementation of programs, projects, and services that will alleviate poverty and empower disadvantaged individuals, families and communities to improve their quality of life;

WHEREAS, under Executive Order (EO) No. 867, signed on 09 March 2010, the **First Party** has further been mandated as the lead agency implementing the National Household Targeting System for Poverty Reduction (NHTS-PR), also known as Listahanan, to establish a system for identifying who and where the poor households are, maintain the system that will serve as repository of the data on poor households, update the data every four years, and share the data - especially to

NGAs – which shall serve as basis in the selection of beneficiaries of social protection programs nationwide;

WHEREAS, the Second Party is mandated to enhance the quality of life of its people by promoting strong multisectoral partnership, socio-economic development and political stability utilizing and protecting the environment through participatory approach and united political will;

WHEREAS, the Second Party shall implement the social protection programs and services defined in Annex A and be allowed secured access to Listahanan database maintained by the First Party;

WHEREAS, the feedback from the Second Party on the services and/or subsidies provided to the Listahanan-identified poor households is essential in strengthening the Project, and in monitoring proper utilization of shared data according to agreed purpose;

NOW THEREFORE, for and in consideration of the above premises, the Parties hereby agree as follows:

Definitions

For the purposes of this DSA, “data protection officer”, “data sharing”, “data subject”, “personal information”, “personal information controller”, and “processing”, shall have the same meaning as in Republic Act No. 10173 or the Data Privacy Act of 2012, and its Implementing Rules and Regulations:

- a. *Data Protection Officer* refers to the person accountable for ensuring compliance by the PIC or PIP with the Data Privacy Act, its IRR, related issuances of the National Privacy Commission, and other applicable laws and regulations relating to data privacy and security.
- b. *Data sharing* is the disclosure or transfer to a third party of personal data under the control or custody of a personal information controller.
- c. *Data subject* refers to an individual whose personal information is processed.
- d. *Personal information* refers to any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual.
- e. *Personal information controller* refers to a person or organization who controls the collection, holding, processing, or use of personal information, including a person or organization who instructs another person or organization to collect, hold, process, use, transfer, or disclose personal information on his/her behalf. The term excludes:
 - (1) A person or organization who performs such functions as instructed by another person or organization; and
 - (2) An individual who collects, holds, processes, or uses personal information in connection with the individual's personal, family, or household affairs.
- f. *Processing* refers to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.

Obligations of the First Party

The First Party shall: ✓

1. Act as and have the duties and accountabilities of a personal information controller for all personal data processed by Listahanan; ✓
2. Have in place reasonable and appropriate physical, technical and organizational measures intended to protect personal data up to the date of sharing with the Second Party, against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, as well as against any other unlawful processing; ✓
3. Uphold the rights of the data subject in accordance with RA No. 10173 and relevant rules;
4. Have in place the required procedures or protocols so that any person or party acting under the authority of the First Party who have access to the personal data for sharing will respect and maintain the confidentiality and security of the personal data, and shall be obligated to process the personal data only on instructions from the First Party;
5. Process and share personal data with the Second Party in accordance with the Data Privacy Act, DSWD data sharing and privacy policies and guidelines, and the requirements specified in Annex A of this Agreement;
6. Provide the Second Party, when so requested, with information vital to the proper use and protection of the shared data, particularly on relevant stipulations under the Data Privacy Act and DSWD data sharing and privacy policies and guidelines; ✓
7. Respond, within reasonable time, to information requests and complaints from data subjects concerning processing of the personal data by the Second Party to the extent reasonably possible and with the information reasonably available to it if the Second Party is unwilling and unable to respond; ✓
8. Make available, upon request and following the procedures laid out in DSWD data sharing and privacy policies and guidelines, a copy of this Agreement to the affected data subjects; and ✓
9. Provide the Second Party with a password that will be used to access encrypted Listahanan data; **Provided**, that only the Second Party, through its duly authorized staff, will use such password.

Obligations of the Second Party ✓

The Second Party shall:

1. Act as and have the duties and accountabilities of a personal information controller for all personal data received from the First Party and covered under this Agreement; ✓
2. Have in place appropriate physical, technical, and organizational measures to protect the personal data received from the First Party against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, as well as against any other unlawful processing;
3. Uphold the rights of the data subject in accordance with RA No. 10173 and relevant rules;
4. Receive and further process personal data from the First Party in accordance with RA No. 10173 and the data sharing and privacy policies and guidelines of the First Party, and for purposes described in Annex A; ✓
5. Have the legal authority to give warranties and fulfill the undertakings set out in this Agreement;

6. Have in place the required procedures or protocols so that any person or party acting under the authority of the Second Party to have access to the personal data will be legally answerable to the Second Party to respect and maintain the confidentiality and security of the personal data, and shall be obligated to process the personal data only on instructions from the Second Party;
7. Not disclose or transfer the personal data to a third party, except those disclosures authorized by law, or provided that any such transfer or disclosure of personal data to be made by the Second Party to a third party personal information controller will be:
 - a. the sole responsibility of the Second Party as a personal information controller, and therefore, will no longer be the accountability or liability of the First Party;
 - b. compliant with the Data Privacy Act, its IRR and other relevant laws, and executed with adequate safeguards in place for the protection of personal data; and
 - c. covered by a separate agreement;
8. Have no reason to believe, at the time of entering into this DSA, in the existence of any laws that would have a substantial adverse effect on the guarantees provided for under this Agreement, and it will inform the First Party if it becomes aware of any such laws;
9. Identify to the First Party a designated data protection officer within its organization authorized to respond to information requests and complaints concerning processing of the personal data, and will cooperate in good faith with the First Party and the data subject concerning all such inquiries within a reasonable time;
10. Allow the First Party to inspect the Second Party's data processing facilities, data files and documentation needed for processing to ascertain compliance with the warranties and undertakings in this DSA;
11. Provide the First Party with information necessary for the sharing of personal data, including but not limited to specific data requirements, processes to be applied to the personal data, timeframe as to when the said data will be needed, and the list of names of the staff and respective position titles who will be authorized to access Listahanan data;
12. Submit periodic feedback report to the First Party detailing how the shared Listahanan data was utilized; and
13. Indemnify the First Party against all costs, claims, damages, or expenses incurred by the First Party or for which the First Party may become liable due to any failure by the Second Party or its employees, subcontractors or agents, and any other party receiving the personal data from the Second Party, to comply with the obligations under this Agreement.

General Provisions

1. The Parties agree that the provisions of RA No. 10173 shall be considered read into this Agreement and that the same principles of transparency, legitimate purpose, and proportionality shall govern the implementation of this Agreement.

Each party shall be liable for the violation of pertinent provisions of RA No.10173 and may be penalized as stipulated in Sections 25-37, Chapter VIII of the Act.

2. The Parties agree that a data subject shall have the right to enforce his or her rights as stipulated in RA No. 10173 against either Party, for their respective breach of their contractual obligations, with regard to the data subject's personal data. In cases involving allegations of breach by the Second Party, the data subject must first directly enforce his or her rights against the Second Party. If the Second Party does not take appropriate action within a reasonable period (which under normal circumstances would be one

month) the data subject may then request the First Party to take appropriate action to enforce his or her rights against the Second Party.

3. This DSA shall automatically be deemed terminated upon availability of the results of the 4th nationwide Listahanan assessment. Either party may also be entitled to terminate the MOA in the event of any breach of obligations under the same. The parties agree, however, that the termination of the Agreement at any time, in any circumstances and for whatever reason, does not exempt them from the obligations and/or conditions under the clauses as regards the processing of the personal data transferred.

In the event of termination of this DSA, the Second Party must ensure that the shared Listahanan data will be kept confidential and will not be actively processed for any purpose.

Breach of any clause of this Agreement, and provisions of the data sharing and privacy policy and guidelines of the First Party shall mean the immediate termination of the DSA and the blacklisting of the Second Party from further usage of any data from the Listahanan.

4. The DSWD or the First Party shall have the right to file the appropriate legal action in accordance with the provisions of the Data Privacy Act of 2012 in instances where pertinent data breach is committed by the Second Party whether intentional or unintentional.

Penalties shall be imposed for data breaches committed by officials and employees as prescribed under Chapter VIII, Sections 25 to 37 of the Data Privacy Act upon the declaration of a competent court that data privacy rights were violated.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be signed in their respective names in _____, Republic of the Philippines, as of the day and year written above:

For the Department of Social Welfare and Development (DSWD)		For the SECOND PARTY (Specify the Name)
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NORMAN S. LAURIO		ROMEO D. DOMASIAN
(First Party Personal Information Controller)		(Second Party Personal Information Controller)

Signed in the Presence of:

JOSEPH L. TESTON		RODERICK D. DOMASIG
(Designated Data Protection Officer)		(Designated Data Protection Officer)

BEFORE ME, a Notary Public for and in the above jurisdiction, personally appeared the following:

NAME	VERIFIED EVIDENCE OF IDENTITY	DATE/PLACE ISSUED
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NORMAN S. LAURIO _____

ROMEO D. DOMASIAN _____

known to me to be the named persons who executed the foregoing instrument and acknowledged to me that the same is their own free will and voluntary act and deed.

This instrument consists of six (6) pages including this page wherein this Acknowledgment is written, and is signed by the parties and their instrumental witnesses on each and every page hereof.

WITNESS MY HAND AND SEAL, this ____ day of _____ 20__ at _____, Philippines.

NOTARY PUBLIC

Doc. No. ____:
Page No. ____:
Book No. ____:
Series of 20__

ANNEX A

(Please accomplish this form accurately and exhaustively. Do not be limited by the spaces provided. You may use additional sheets if necessary.)

DESIGNATED DATA PROTECTION OFFICERS

First Party JOSEPH L. TESTON (Name) Planning Officer III (Position)	Second Party RODERICK D. DOMASIG (Name) MGDH I (Position)
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PURPOSE OF THE DATA SHARING AGREEMENT

The data is shared for the following social protection programs, services or activities (Please provide detailed information):

Basis for the identification of potential beneficiaries for the implementation of LGU initiated programs and services.

DATA SUBJECTS

The data shared concern the following data subjects (Please specify)¹:

List of Data Subjects.

DATA REQUIREMENTS

(Please check the Listahanan data needed and provide information on how each will be used or processed):

✓	DATA SETS ²	HOW DATA WILL BE USED OR PROCESSED
	1. Address	Basis for the identification of potential beneficiaries for the implementation of LGU initiated programs and services
	2. Household Member Information	
	a. Last Name, First Name, Middle Name and Extension Name	
	b. Age	
	c. Sex	
	d. Marital Status	
	e. Relationship to household head	
	3. Housing Condition	
	a. Type of building/house occupied	
	b. Type of construction materials of the roof of housing units occupied	
	c. Type of construction materials of the outer walls of housing unit occupied	
	d. Tenure status of the housing unit and lot occupied	

¹ Examples of data subjects: a. Poor households; b. Poor children; c. Poor senior citizens; d. Poor persons with disability; e. Poor women; f. Poor farm workers, foresters and fisher folks; and g. Urban Poor

² For other data requirements, please specify.

	e. Access to electricity	
	f. Ownership of assets	
	4. Health	
	a. Access to sanitary toilet facility	
	b. Access to safe water source	
	c. Attending health facility	
	5. Education	
	a. Attending school	
	b. Highest educational attainment	
	6. Labor and Employment	
	a. Type of primary occupation/business reported	
	b. Class of worker	
	c. Nature of employment	
	7. Others	
	a. Cause of displacement experienced	
	b. Indigenous people group	
	c. Household member working abroad	
	d. Programs and services received	
	e. Solo parent	
	f. Type of functional difficulty	